



CA INTER MAY/SEP 26/JAN 27

GST

**PLACE OF
SUPPLY / VALUE OF
SUPPLY / TIME OF SUPPLY**

ONE SHOT



Place of Supply

Meaning of Intra-state supply

Location of supplier & Place of Supply is in the same state/UT

Meaning of Inter-state supply

Location of supplier & Place of Supply is in the two different state/UT or one state & one UT



Section 10 [Place of Supply of Goods Other Than Export]

Section	Scenario	Place Of Supply
10(1)(a)	Supply Involve movement	Where movement of Goods Terminate for delivery to recipient
10(1)(b)	Bill to ship to sale	Location of 3 rd Person
10(1)(c)	Supply doesn't involve movement	Where Goods made available place of Delivery
10(1)(ca)	Supply to a person over the counter to URP	✓ POS shall be Address of Recipient recorded in invoice. ✓ If not available then Location of Supplier. ✓ For supplies of goods to URP through e-commerce platforms, if the billing address and delivery address differ then POS Shall be Place of Delivery.
10(1)(d)	Assembly or Installation involved	Place of Assembly/ Installation
10(1)(e)	Goods supplied on board of conveyance	Place where Goods taken on board

Place of Supply in case of supply of services

Section 12(2) [General Rule]

Service Recipient	Place Of Supply
Registered	Location of SR
Unregistered	
a) SR Address Available	Location of SR
b) SR Address Not Available	Location of SP

Section 12(3) [Service related to immovable property and lodging / Accommodation]

- ✓ Construction | Agent | Engineering | Survey etc. of immovable property.
- ✓ Lodging | Accommodation by Hotel | Inn | Guest House | House Boat.
- ✓ Ancillary Service Related to above

Location Of Property	Place Of Supply
In India	Location of Property
Outside India (SP/SR in India)	Location of SR

Note:

- Provisions are applicable on already constructed as well as yet to be constructed property.
- Location in more than 1 state UT
 - Single Property Is Located @ 2 or more states
POS = Based on Area In each state or UT
 - Different Property Is located @ 2 or more state
POS = Based on No. Of Nights Stayed in Each Property
- Boat / Vessel: Based on time spent in each state / UT

Section 12(4) [Restaurant | Catering | Personal Grooming | Fitness | Beauty | Health Services Including Cosmetic & Plastic Surgery]

POS = Place where service have been performed



Section 12(5) [Training & Appraisal Services]

Service Recipient	Place Of Supply
Registered	Location of SR
Unregistered	Place where service have been Performed

Section 12(6) [Admission to Event | Park | another Place]

Location of Place or Where Event is held

Section 12(7) [Organizing of Event and Sponsorship Services]

Service Recipient	Place Of Supply
Registered	Location of SR
Unregistered	
a) Event Held In India	Location Of Event
b) Event Held o/s India	Location of SR

Section 12(8) [Transportation of Good including mail & Courier]

Service Recipient	Place Of Supply
Registered	Location of SR
Unregistered	Location Where goods are handed over to Transporter

Section 12(9) [Transportation of Passenger]

Ticket Is Issued	
Service Recipient	Place Of Supply
Registered	Location of SR
Unregistered	Location Where Passenger Embarks on Journey
Issue Of Passage for Future Journey Where Boarding Point Is Not Known	
POS = As per section 12(2)	

Note: Return Journey Is Treated as separate journey Even Ticket for both side is issued at the same time

Section 12(10) [Service provided on Board | Conveyance]

First Schedule point of departure of that conveyance

Section 12(11) [Telecommunication Services]

Service	Place of supply
1. Service provided using Fixed Line/ Cable / Dish antenna/ Leased circuit	Location where Instrument is installed for receipt of service
2. Postpaid Connection	If Address of SR available Yes → POS = Address of SR No → POS = Location of SP
3. Prepaid Connection	a) Through agent/distributor POS = Location of agent/distributor b) Online mode POS = Location of SR c) Other cases POS = Same as of Postpaid connection

Note: If Leased circuit through more than 1 State | UT then Determine Based on no. of points in each state | UT.

Section 12(12) [Banking and Financial services including stock broking services]

If Recipient address available → Location of Recipient

If not available → Location of Supplier

**Section 12(13) [Insurance Business]**

Location of Recipient (Always)

Section 12(14) [Advertisement Services to Government]

Each of state where Advertisement Broadcasted | RUN | Played.



POS in Case of Supply of Services in Respect of Advertising Sector

Case 01:

If vendor has provided **space or right to use** the space on hoarding or structure **belonging to him**. The POS in such cases is the place where the hoardings **are located** as per section 12(3).

Reason: As hoardings/structure are **fixed to the ground**, they're considered part of the **immovable property** (like land or buildings).

Case 02:

Where vendor is only responsible for **displaying advertisement** of client. It can be on rental or own hoarding or structure. In this case, if SR is registered or if unregistered but address of SR is available, then POS shall be **location of SR**. Otherwise **location of SP**.



Reason: As the advertising company **isn't buying the space or rights** to the space directly, but only availing a service to **display its advertisements**, the place of supply shall be determined as per Section 12(2).



Chapter 7: Value of Supply

Section 15 [Value of Supply]

Section 15(1)

VOS = Transaction Value if following 2 conditions are satisfied:

1. Supplier (Seller) & Recipient (Buyer) → Unrelated
2. Price → Sole Consideration

Example: Jethalal sold goods of Rs. 1 Lakh [MRP 1,20,000] to Syed. Here, VOS shall be Rs. 1,00,000 as they are unrelated person and no other consideration is involved on this transaction.

Section 15(2) [Inclusions in VOS]

1. Taxes other than GST if charged separately by the supplier
#TCS under Income Tax not included in VOS
2. Supplier obligation in relation to supply met by recipient

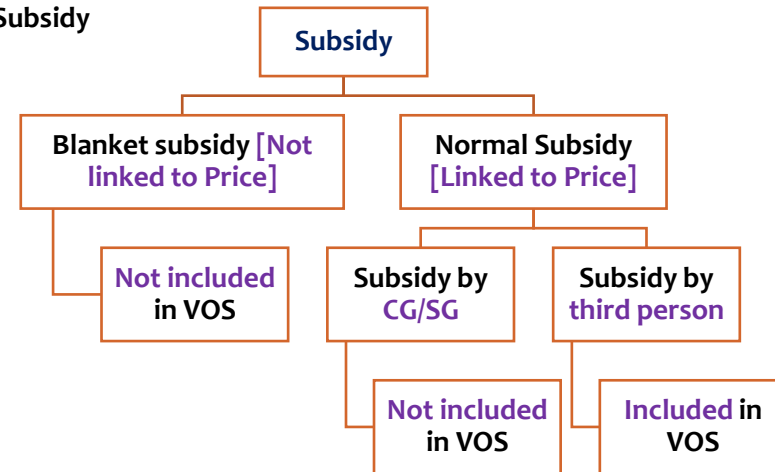
Freight cost recovered from customer	Composite Supply and shall be part of main supply
Good Sold FOR basis (i.e. delivering goods is responsibility of supplier)	Freight paid by recipient is included in VOS
Good Sold Ex-Factory basis (i.e. supplier is not responsible for delivery)	Freight paid by Recipient is not included in VOS

Incidental Expenses [Packing Charge, Installation, etc.]

3. Any amount charged for anything done by the supplier before or at the time of supply
4. Interest / Late Fee / Penalty for Delayed Payment
#Waived off amount shall not be included in VOS



5. Subsidy



Important Adjustments:

	List Price after considering subsidy	List Price before considering subsidy
	Subsidy deducted from List Price	subsidy not deducted from List Price
Subsidy by CG/SG	No Treatment	Deduct
Subsidy by third person	Add back	No Treatment

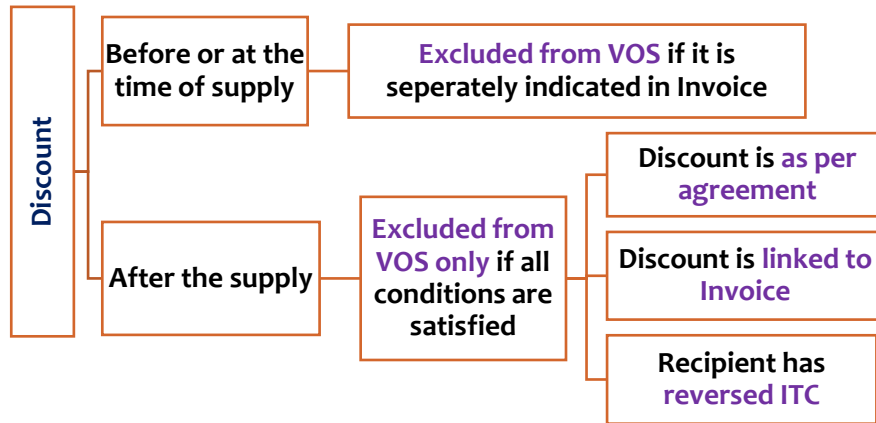
Note:

In case of Interest / Late Fees / Penalty:

If GST Rate is given → Always assume amount is inclusive of GST

If GST Rate is not given → Always assume amount is exclusive of GST



Section 15(3) [Exclusions from VOS]**Other Points****1. Whether No-Claim Bonus is considered as Discount?**

Yes, it is reduced from **Gross Premium** while raising invoice as it is Related to **on or before supply of goods**

2. Staggered discounts ('Buy more, Save more' offers)

Generally shown in the invoice – Excluded from VOS.

3. Periodic/year ending discounts/volume discounts

- Supplier offers discounts based on total purchases over a period (e.g., yearly targets).
- Terms are pre-agreed at or before the time of supply.
- Exact discount amount is determined later (usually at year-end), so not shown on invoice.
- Supplier issues credit note to pass on discount.
- Discount is allowed as deduction from value of supply if Sec 15(3) conditions are met.

- Recipient must reverse ITC proportionately related to such discount.

4. Secondary Discounts

- Discounts not known at the time of supply or given after supply is completed.
- Example: Price reduced later and credit note issued.
- Not deductible from value of supply.
- Reason: Conditions of Sec 15(3)(b) not satisfied.



Chapter 6: Time of supply

Time of Supply for Goods [Section 12 (2)]

Forward Charge Mechanism

[Section 12(2)]

- a) Date of Issue of Invoice or
 - b) Due date of Issue of Invoice
- whichever is earlier

Reverse Charge Mechanism

[Section 12(3)]

- a) Date of Receipt of Goods
 - b) Date of Payment
 - c) 31st day from Date of Invoice
- whichever is earlier

Date of Payment:

- a) Date of Recording Payment in Recipient's Books or
 - b) Date of Debit in Recipient's Bank A/c
- Whichever is earlier

Note: Registered persons supplying specified actionable claims (betting; casinos; gambling; horse racing; lottery; or online money gaming), TOS shall be:

- a) Date of Issue of Invoice.
- b) Due date of Issue.
- c) Date of Receiving Payment.

Date Of Receiving The payment

- Date of recording in BOA
- Date of Credit In Bank A/c

Due Date for Raising Invoice [in case of Goods] (Section 31)

- a) **Movement of Goods involved**
→ Before or at the time of Removal of Goods
- b) **No Movement of Goods involved**
→ Before or at the time of Delivery of Goods

c) Continuous Supply of Goods

Before or at the time of

- a) Issuance of Periodical Statement
- b) Receipt of Payment

} Whichever is earlier

d) Sale of Goods on approval Return Basis

- a) Before or at time of supply
- b) 6 months from Removal of Goods

} Whichever is earlier

Time of Supply for Services [Section 13]

Forward Charge Mechanism [Section 13(2)]

If Invoice is issued on time, then

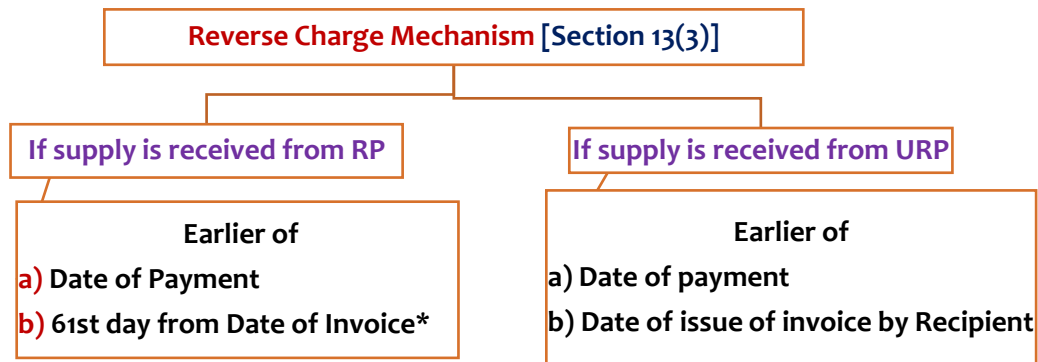
- a) Date of Issue of Invoice or
 - b) Date of Receipt of Payment
- whichever is earlier

If Invoice does not issued on time, then

- a) Date of Provision of services or
 - b) Date of Receipt of Payment
- whichever is earlier

Due Date for Raising Invoice [in case of Services] [Section 31]

- 1) **Normally** Before or within 30 days of Provision of Service
- 2) **In Case of Insurance | Banking / FI | NBFC** - Within 45 days from Provision of Service
- 3) **Continuous Supply of Services (More than 3 months)**
Due date of Payment Available - Due date of Payment
 - Due date not Available - Actual date of Payment
 - Milestone Based [25%, 50%, 75% etc.] - on completion of Milestone
- 4) **Supply ceased before Completion** - Raise invoice before such cessation



*If date of Invoice is not determinable, then
TOS = Date of entry in BoA of Recipient

Date of Payment

- a) Date of Recording Payment in Books of recipient
- b) Date of debit in Recipients bank A/c

Whichever is earlier

If Advance is up to Rs. 1000

At the option Of Supplier

- Payment Received date
- Date of Issue of invoice

Supply by Associated enterprise & Supplies located outside India

- Date of entry in Books of Recipients
 - Date of Making Payment
- } Whichever is earlier

Common Points for Time of Supply of Goods & Services

Section 12(6) / 13(6)

Time of Supply of Addition in Value because of Interest | fees | Penalty etc.

TOS = Day on which addition Received by Supplier

Section 12(5) / 13(5)

Any other Case [Residual Cases]

- If Periodical return is filled – Due date of Return
- Otherwise - Date on which GST Paid.

Time of Supply in case of construction & maintenance of NHAI Projects under Hybrid Annuity Modal

It is a continuous supply of service, hence invoice must be issued on or before due date of payment or completion of event specified in the contract.

If invoice is issued within the time

- a) Date of issue of invoice.
 - b) Date of Receipt of Payment.
- } Whichever is earlier

If invoice is not issued within the time

- a) Due date of payment as per contract.
 - b) Date of receiving payment.
- } Whichever is earlier